

Whangarei District Council Meeting Minutes

Date: Thursday, 21 December, 2023

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Phil Halse (Teams)
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance

Cr Jayne Golightly

Scribe

C Brindle (Senior Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Members of the public recording
- Extra-ordinary business - supplementary reports 1.3, 1.31, 1.4 & 1.5 (confidential) resolution to consider as extra ordinary business following Item 7.12
- Item 7.6 – duplicated in error - disregard

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made during the open meeting.

3. Apologies / Kore Tae Mai

Cr Golightly (absent) and Cr Halse (late arrival)

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the apologies be sustained.

Carried

Cr Olsen requested her vote against be recorded.

4. Public Forum / Huihuinga-a-tangata

Henry Bedell – Maintenance of public spaces / spraying (Presentation of petition)

Robin Lieffering - Long Term Plan – Housing

Kim Robinson – Presentation of petition from Otangarei Community to Councillors to fix the environment (broken footpaths etc) around Otangarei.

Cr Halse joined the meeting at 9.12am during Robin Lieffering's presentation.

5. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held on 23 November 2023

Moved By Cr Carol Peters

Seconded By Cr Deborah Harding

That the minutes of the Whangarei District Council meeting held on Wednesday 29 November 2023, having been circulated be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council Extraordinary Meeting held on 29 November 2023

Moved By Cr Patrick Holmes

Seconded By Cr Paul Yovich

That the minutes of the Whangarei District Council meeting held on Wednesday 29 November 2023, having been circulated be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Information Reports / Ngā Pūrongo Kōrero

6.1 2024-2034 Long Term Plan - New Direction on the Water Services Delivery

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the Council notes the correspondence from the Minister of Local Government, Simeon Brown, regarding three waters legislation and a proposed new direction for Water Services Delivery (Attachment 1).

Carried

6.2 Whangarei District Airport - Audit Report for the Year Ended 30 June 2023

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That the Council notes the Auditors Report to 30 June 2023 for the Whangarei District Airport.

Carried

6.3 Customer Requests Remedial Plan Update

Moved By Cr Nicholas Connop

Seconded By Cr Deborah Harding

That the Council

1. Notes the Customer Requests Remedial Plan Update report
2. Notes the progress made to date to address the backlog of unresolved requests from 2021 and 2022
3. Notes the future plans to improve the customer experience.

Carried

6.4 Water Treatment Plant Fluoridation – Legal and Contractual Considerations of Pausing Work

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That Council note the report on the potential implications of stopping work on the contract to install fluoridation equipment at four water treatment plants.

Amendment

Moved By Cr Gavin Benney

Seconded By Cr Phil Halse

That Council note the report on some of the possible implications of stopping work on the contract to install fluoridation equipment at four water treatment plants.

**The amendment was Carried
and subsequently Carried
as the substantive Motion**

7. Decision Reports / Whakatau Rīpoata

7.1 Long Term Plan 2024-34 - Update to Schedule following Announcement on the Repeal of Water Services Entities Act

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That Council;

1. Notes the high-level draft updated schedule prepared by officers in anticipation of the Water Services Entities Act repeal indicated by central government with the goal of adopting the Long Term Plan within the three month extension and preferably by early July 2024; and
2. Notes that the LGCI figure used in previous modelling will be amended according to the BERL recommendations received recently; and
3. Notes that the reintroduction of 3 Waters assets and services may impact on the rates modelling already done and that officers will report on any impacts at a future briefing; and
4. Support the work being undertaken to introduce the 3 Waters Services into the 2024-2034 Long Term Plan prior to legislative changes being made.
5. Notes that the new Flooding and Coastal Management Activity is to be retained.

Carried

7.2 Notice of Motion Councillor Marie Olsen

Moved By Cr Marie Olsen

Seconded By Cr Simon Reid

That Whangarei District Council pause work on the directive issued by the Director General of Health to fluoridate Whangarei's water supply until the legal position can be clarified as a result of the recent high court decision that the directive is unlawful.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Deborah Harding

That the motion now be put.

On the procedural motion being put Cr Holmes called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	7	6	0

The procedural Motion was Carried (7 to 6)

On the motion being put Cr Holmes called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	

Results**6****7****0****The Motion was Lost (6 to 7)****7.3 Fluoridation Motion to Consult - Consultation Options****Moved By** Cr Simon Reid**Seconded By** Cr Patrick Holmes

That the Council

1. Notes that under the Health Act 1956 and Local Government Act 2002, there is no requirement for local authorities to consult with the community on this matter as it is a directive from the Ministry of Health.
2. Notes that the results of the consultation with the community on their view on fluoridation will be provided to the Ministry of Health for their consideration.
3. Supports option 2 – a short online survey on the fluoridation of water.

Amendment**Moved By** Cr Deborah Harding**Seconded By** His Worship the Mayor

That the Council

1. Notes that under the Health Act 1956 and Local Government Act 2002, there is no requirement for local authorities to consult with the community on this matter as it is a directive from the Ministry of Health.
2. Notes that the results of the consultation with the community on their view on fluoridation will be provided to the Ministry of Health for their consideration.
3. Supports option 3 – carry out a phone survey.

On the amendment being put Cr Reid called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Phil Halse	X		

Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	11	2	0
The amendment was Carried (11 to 2) and subsequently Carried as the substantive Motion			

Crs Reid and Yovich requested their votes against the motion be recorded.

*A short break was taken from 11.11am to 11.22am following Item 7.3.
Cr Halse did not rejoin the meeting immediately following the break.*

7.4 Adoption of the 2022-23 Summary Annual Report

Moved By His Worship the Mayor

Seconded By Cr Paul Yovich

That the Council:

1. Receives the independent Auditor's Report for the Summary Annual Report.
2. Adopts the Summary Annual Report for the year ended 30 June 2023.
3. Authorises the Chief Executive to make any minor editing amendments that are required.

Carried

7.5 Decision making over the 2023-24 Christmas recess period

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That Council:

1. Delegates the power to make urgent decisions on behalf of Council or its Committees between the last scheduled meetings in

December 2023 and the first meeting of Council or its Committees in 2024 (the 2023-24 Christmas recess period) to:

- any two of either the Mayor or Deputy Mayor, and the Chairperson of either the Finance, Infrastructure, Strategy Planning and Development, Community Development, or Te Kārearea Strategic Partnership Standing Committees
2. In the event the Mayor and Deputy Mayor are both absent from Council at the same time, delegates the power to make urgent decisions on behalf of Council or its Committees over the 2023-24 Christmas recess period to:
 - Any two Chairpersons of either the Finance, Infrastructure, Strategy Planning and Development, Community Development, or Te Karearea Strategic Partnership Standing Committees.
 3. Approve the increase of the Chief Executive's financial authority to \$10million (excluding GST), for the period between the last scheduled Council meeting in December 2023 and the first meeting of Council or other relevant Committees in 2024.
 4. Notes that if it is considered necessary, an extraordinary meeting of Council will be called during the 2023-24 Christmas recess period.
 5. Notes that if the urgent decision-making process is exercised, the instances will be reported to the first Council or relevant Committee meeting in 2024.
 6. Designates Councillor Nicholas Connop the authority under section 25(5) of the Civil Defence Emergency Management Act 2002 to declare a state of local emergency in the event the Mayor is unavailable over the 2023-24 Christmas recess period.

Amendment

Moved By Cr Ken Couper

Seconded By Cr Paul Yovich

3. Approves the increase of the Chief Executive's financial authority to \$10million (excluding GST), for the period between the last scheduled Council meeting in December 2023 and the first meeting of Council or other relevant Committees in 2024. Any contracts over the Chief Executive's usual delegated authority (\$3.5million GST excl), be in consultation with the Chairs of either the Infrastructure Committee, the Finance Committee or the Deputy Mayor.

**The Amendment was Carried
and subsequently Carried
as the substantive Motion**

Cr Halse rejoined the meeting at 11.25am during Item 7.5.

7.6 Lease to Menzshed Waipu Incorporated

Moved By Cr Phil Halse

Seconded By Cr Ken Couper

That Council:

1. Approves the granting of a lease to Menzshed Waipu Incorporated over a 930m² piece of unutilised WDC Roding Division land at 63 The Centre, Waipu on the following terms:
 - a. Term: 10 years
 - b. Commencement Date: 1 February 2024
 - c. Renewal Terms: Two of 10 years (at Council's discretion)
 - d. Final Expiry Date: 31 January 2054
 - e. Rent: \$1.00 per annum plus outgoings (subject to review at Council's discretion).
2. Delegates to the Chief Executive the authority to finalise all terms and conditions relating to the lease and to execute.

Carried

7.7 Third/Sixth Battalion Royal NZ Infantry Regiment request to renew charter with Council

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council:

1. Approve the renewal of a Charter between Council and the Third/Sixth Battalion Royal NZ Infantry Regiment, and
2. Authorise His Worship the Mayor and Council's Chief Executive to finalise and execute the Charter with the Third/Sixth Battalion Royal NZ Infantry Regiment on behalf of Council.

Carried

7.8 Temporary Road Closure - Northland Car Club January and February 2024

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Northland Car Club Hillclimb series on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Sunday 28 January 2024

Kaiikanui Road, from 3km's towards Webb Road to 5kms from Pigs Head Road roundabout.

Sunday 18 February 2024

Crows Nest Road, from intersection of Paiaka Road to 2kms from SH1.

Period of Closure: 8am – 5.30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

7.9 Temporary Road Closure - Super Rugby Blues v Fijian Drua

Moved By Cr Marie Olsen

Seconded By Cr Gavin Benney

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Super Rugby Blues v Fijian Drua on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965

Saturday 24 February 2024

Okara Drive, from the roundabout at Okara Drive & Porowini Ave to the roundabout at Okara Drive & Port Road.

Period of Closure: 1pm to 8pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

7.10 Emission Reduction Plan and Reduction Targets

Moved By Cr Scott McKenzie

Seconded By Cr Deborah Harding

That the Council adopts this Emission Reduction Plan and associated Reduction Targets.

On the motion being put Cr Connop called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	8	5	0

The Motion was Carried (8 to 5)

7.11 Lease to Menzshed Waipu Incorporated

Duplicate of Item 7.6, refer Item 7.6 for decision.

7.12 Climate Adaptation Pilot and Programme - December 2023

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That the Council

1. Approves a coastal community adaptation programme of work at a catchment scale with Oakura catchment as the initial location.
2. Notes that resourcing is included in the budget modelling to inform the upcoming draft 2024-34 Long-Term Plan.
3. Notes that Northland Regional Council has committed 'in kind' technical resourcing to support this programme.

Carried

Cr Reid requested his vote against be recorded.

Extra ordinary Business

Confidential Items 1. 3, 1.3.1, 1.4 – Employment matters and Item 1.5 Legal Proceedings were distributed after the agenda was circulated but not within the timeframe specified in LGOIMA, a resolution of council is required to consider these items at today's meeting.

Items 1.3, 1.31 and 1.4 were not on the agenda due to delays in receiving information relevant to the Items.

Item 1.5 Legal proceedings was not on the agenda due to negotiations being ongoing at the time of the agenda closure.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That council consider Items 1.3, 1.31, 1.4 and 1.5 at today's meeting.

Carried

8. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 23 November 2023	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Property Purchase		
1.3	Employment matter		
1.4	Employment matter		
1.5	Legal proceedings		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public,

are as follows:		
Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To protect the privacy of natural persons	Section 7(2)(a)
1.4	To protect the privacy of natural persons	Section 7(2)(a)
1.5	To maintain legal professional privilege. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(g) Section 7(2)(i)

Carried

9. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a karakia/prayer at 12.58pm.

Confirmed this 22nd day of February 2024

His Worship the Mayor Vince Cocurullo (Chairperson)